

5.	Kuck vs. Rosenberg 25-01490188	1. Motion for Leave to File Amended Complaint 2. Motion for Order to Stay Proceedings 3. Case Management Conference Plaintiff Rick Kuck’s motion for leave to file first amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761; <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 [on a motion for leave to amend, grounds challenging sufficiency of the pleading are premature]; see also <i>Sanai v. Saltz</i> (2009) 170 Cal.App.4th 746, 769-770 [error to condition leave to amend on plaintiff producing evidence to substantiate his proposed claims].) Plaintiff is ORDERED to separately file the proposed first amended complaint (Flores Decl. at Ex. B) <u>before July 31, 2026</u>. The first amended complaint must be filed as a separate document to ensure it is properly indexed in the record. <u>Motion to Stay Proceedings</u> Defendant Serene Rosenberg’s motion to stay proceedings is GRANTED IN PART, as follows. (See <i>Avant! Corp. v. Superior Court</i> (2000) 79 Cal.App.4th 876, 887 [factors]; <i>Pacers, Inc. v. Superior Court</i> (1984) 162 Cal.App.3d 686; see also Banuelos Decl. ¶ 4 [pending parallel criminal proceedings, Case No. 25HF0311].) All discovery directed to Serene Rosenberg is STAYED pending the resolution of her parallel criminal case, <i>People v. Rosenberg</i>, Orange County Superior Court, Case No. 25HF0311, or until further order of the court. Discovery directed to any other party to this action may proceed. A Status Conference re: Criminal Proceedings (status of <i>People v. Rosenberg</i>, Case No. 25HF0311) is now set for February 25, 2027, at 9:30 a.m. in Department C12. The Case Management Conference is also CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12. Defendant shall give notice of all the above.
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